

# MEMORANDA

OF

DECISIONS RENDERED DURING THIS PERIOD EMBRACED IN THIS VOLUME

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[807 NE2d 278, 775 NYS2d 229]

NICOLE DAVID et al., Appellants, v COUNTY OF SUFFOLK, Defendant, and SMITHTOWN CENTRAL SCHOOL DISTRICT, Respondent.

Argued October 22, 2003; decided November 20, 2003

## SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 24, 2002. The Appellate Division affirmed an order of the Supreme Court, Suffolk County (Ralph F. Costello, J.), which had granted a motion by defendant Smithtown Central School District for summary judgment dismissing all claims against it.

*David v County of Suffolk*, 295 AD2d 556, affirmed.

## HEADNOTE

### Schools — Students — Injury to Student

In a negligent supervision action, defendant school district demonstrated its entitlement to summary judgment. The infant plaintiff was injured during gym class while participating in a cargo net climbing exercise. Schools are obligated to exercise such care of their students as a parent of ordinary prudence would observe in comparable circumstances. Defendant submitted deposition testimony of the physical education teacher supervising the class, who explained that he instructed the students on net climbing, demonstrated proper techniques and was 10 to 12 steps away from the infant plaintiff when she fell. The expert affidavit plaintiffs offered in response failed to establish the foundation or the source of the standards underlying the conclusion that defendant's supervision of the infant plaintiff was inadequate. As such, the affidavit lacked probative force and was insufficient as a matter of law to overcome the school district's motion for summary judgment.

## APPEARANCES OF COUNSEL

*Silberstein, Awad & Miklos, P.C.*, Garden City (*Joseph P. Awad* and *Paul N. Nadler* of counsel), for appellants.

*Ahmuty, Demers & McManus*, Alberston (Brendan T. Fitzpatrick of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

We agree with Supreme Court and the Appellate Division that defendant Smithtown Central School District demonstrated its entitlement to summary judgment dismissing plaintiffs' negligent supervision claim. The infant plaintiff was injured in her second-grade gym class while participating in a cargo net climbing exercise. Although we have recognized that "[s]chools are not insurers of safety," they are obligated to exercise such care of their students "as a parent of ordinary prudence would observe in comparable circumstances" (*Mirand v City of New York*, 84 NY2d 44, 49 [1994], citing *Lawes v Board of Educ. of City of N.Y.*, 16 NY2d 302, 306 [1965]). In support of its motion for summary judgment, defendant relied on the deposition testimony of the physical education teacher supervising the class, who explained that he instructed the students on net climbing, demonstrated proper techniques and was 10 to 12 steps away from the infant plaintiff when she fell. The expert affidavit plaintiffs offered in response failed to establish the foundation or the source of the standards underlying the conclusion that defendant's supervision of the infant plaintiff was inadequate. As such, the affidavit "lacked probative force and was insufficient as a matter of law" to overcome the school district's motion for summary judgment (*Diaz v New York Downtown Hosp.*, 99 NY2d 542, 545 [2002]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

Order affirmed, with costs, in a memorandum.

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[802 NE2d 1080, 770 NYS2d 682]

RICHARD ESPOSITO, Appellant, v NEW YORK CITY INDUSTRIAL DEVELOPMENT AGENCY et al., Respondents.

Decided November 20, 2003

#### SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May

1, 2003. The Appellate Division, with two Justices dissenting, (1) affirmed an order of the Supreme Court, New York County (Marcy Friedman, J.), which, insofar as appealed from, had granted defendant's cross motions for summary judgment dismissing plaintiff's Labor Law § 240 (1) and § 241 (6) claims, and (2) affirmed a subsequent order of that same court, which had granted motions by defendants American International Group, Inc. and American International Realty Corp. to renew their motions for summary judgment to the extent of dismissing plaintiff's claim against them pursuant to Labor Law § 200 and dismissing the complaint and all cross claims in their entirety against these defendants.

*Esposito v New York City Indus. Dev. Agency*, 305 AD2d 108.

#### HEADNOTES

##### **Labor — Safe Place to Work — Routine Maintenance**

1. Plaintiff maintenance worker did not have a claim under Labor Law § 240 (1) for injuries sustained while performing a monthly maintenance check on an air conditioning unit. Labor Law § 240 (1) applies where an employee is engaged "in the erection, demolition, repairing, altering, painting, cleaning or pointing of a building or structure." Although repairing is among the enumerated activities, this activity is distinguished from routine maintenance. The work here involved replacing components that require replacement in the course of normal wear and tear. It therefore constituted routine maintenance and not "repairing" or any of the other enumerated activities.

##### **Labor — Safe Place to Work — Routine Maintenance**

2. Plaintiff maintenance worker did not have a claim under Labor Law § 241 (6) for injuries sustained while performing a monthly maintenance check on an air conditioning unit. Labor Law § 241 (6) is inapplicable outside the construction, demolition or excavation contexts.

##### **Labor — Safe Place to Work — Special Employee**

3. Plaintiff, member of an operating engineers union which did maintenance work for a commercial building, was a special employee of the defendant realty corporation, which leased the building from the owner, and thus summary judgment was properly granted to that defendant on plaintiff's Labor Law claims.

#### APPEARANCES OF COUNSEL

*Rheingold, Valet, Rheingold, Shkolnik & McCartney LLP*, New York City (*Hunter J. Shkolnik* of counsel), for appellant.

*Fiedelman & McGaw*, Jericho (*Ross P. Masler* of counsel), and *Jacobowitz, Garfinkel & Lesman*, for New York City Industrial Development Agency, respondent.

*Shaub, Ahmuty, Citrin & Spratt, LLP*, New York City (*Timothy R. Capowski* of counsel), and *Ahmuty, Demers & McManus*, for American International Group, Inc. and another, respondents.

## OPINION OF THE COURT

## MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff was injured after falling from a ladder while attempting to remove a cover from an air conditioning unit on the 22nd floor of a commercial building in Manhattan. He was a member of Local 94 Operating Engineers Union, which did maintenance work for the building. American International Realty (AIR), a subsidiary of American International Group (AIG), leased the building from its owner, the New York City Industrial Development Agency (NYCIDA). Plaintiff sued AIR, AIG, NYCIDA and the New York City Environmental Development Corporation for violations of Labor Law § 240 (1) and § 241 (6). On the date of the accident, plaintiff was performing a monthly maintenance check of the air conditioning units on the 22nd through 29th floors. This included taking amperage readings and checking belts, sheaves and bearings. When checking the 22nd floor unit, plaintiff discovered a low amperage reading and heavy vibrations. The motor appeared worn and loose, and the belts were “chewed up.” He left and returned with tools and parts needed to fix the machine. As he climbed a ladder and began to remove the unit’s cover a second time, the bottom of the ladder “kicked out” and he fell.

[1] Supreme Court held that plaintiff could not sustain a claim under section 240 (1), because he was not engaged in any of the covered activities. The Appellate Division affirmed, as do we. Section 240 (1) applies where an employee is engaged “in the erection, demolition, repairing, altering, painting, cleaning or pointing of a building or structure.” Although repairing is among the enumerated activities, we have distinguished this from “routine maintenance” (*Smith v Shell Oil Co.*, 85 NY2d 1000, 1002 [1995]). The work here involved replacing components that require replacement in the course of normal wear and tear. It therefore constituted routine maintenance and not “repairing” or any of the other enumerated activities.

[2, 3] As for Labor Law § 241 (6), we have held it inapplicable outside the construction, demolition or excavation contexts (see *Nagel v D & R Realty Corp.*, 99 NY2d 98 [2002]). Therefore, the maintenance work involved in this case fell outside that section’s reach. We also agree that defendants satisfactorily established that plaintiff was a special employee of AIR.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

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[802 NE2d 1081, 770 NYS2d 683]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAURA STIGGINS, Appellant.

Argued October 23, 2003; decided November 20, 2003

### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Livingston County Court (Gerard J. Alonzo, J.), entered July 19, 2002. The County Court affirmed a judgment of the Justice Court of the Town of Mount Morris (Anthony R. Tripi, J.), which had convicted defendant, upon a jury verdict, of assault in the third degree and endangering the welfare of an incompetent person.

### HEADNOTE

#### **Crimes — Conduct of Trial Judge — Failure to Maintain Integrity of Proceedings**

The criminal defendant was deprived of her right to a fair trial where the presiding town justice failed to maintain the integrity of the proceedings. The judge was unfamiliar with the mechanics of a jury trial, which prompted defense counsel to object to the continuation of the proceedings. The prosecutor had to guide the judge through jury selection which resulted in the judge relinquishing control over the jury selection process. This lack of adequate supervision and control permeated the remainder of the proceedings. The prosecutor had to tell the judge what to read during preliminary jury instructions, and had to intercede during the judge's attempt to give close of evidence instructions and jury instructions. Finally, in response to the jury's oral request for a readback of testimony, the prosecutor instructed the jury on the correct procedure for requesting evidence, thereby assuming the important function of maintaining control of jury deliberations.

### APPEARANCES OF COUNSEL

*Redmond & Parrinello, LLP*, Rochester (Bruce F. Freeman of counsel), for appellant.

*Eliot Spitzer, Attorney General*, New York City (Alyson J. Gill, Michelle Aronowitz and Robin A. Forshaw of counsel), for respondent.

### OPINION OF THE COURT

MEMORANDUM.

The order of County Court should be reversed and a new trial ordered.

Defendant's conviction of assault in the third degree and endangering the welfare of an incompetent person must be overturned because she was deprived of her right to a fair trial. It was apparent from the outset of the proceedings that the presiding town justice was unfamiliar with the mechanics of a jury trial, which prompted defense counsel to object to the continuation of the proceedings. The judge had to be guided by the prosecutor through every aspect of jury selection—he attempted to seat a jury before voir dire began, failed to elicit basic information regarding the qualifications of the prospective jurors and issued an oath to the trial jurors that did not comply with CPL 270.15 (2)—all of which resulted in the judge “relinquish[ing] control” over the jury selection process (*People v Toliver*, 89 NY2d 843, 844 [1996]).

This lack of adequate supervision and control permeated the remainder of the proceedings. The prosecutor had to interrupt the judge during preliminary jury instructions to tell him what to read. At the close of evidence but before summations, the judge attempted to give final instructions to the jury until the prosecutor interceded. During the charge to the jury, the judge read inapplicable instructions and was unaware that each element of the charged crimes must be explained to the jury, eliciting yet another intervention by the prosecutor. Finally, in response to the jury's oral request for a readback of testimony, the prosecutor instructed the jury on the correct procedure for requesting evidence, thereby “assum[ing] the important function of maintaining control of jury deliberations” (*People v Bayes*, 78 NY2d 546, 551 [1991]). In all, it is evident that the judge failed to satisfy his obligation to maintain the integrity of the proceedings.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

Order reversed and a new trial ordered, in a memorandum.

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RUPERT BLAKE et al., Appellants, v NEIGHBORHOOD HOUSING SERVICES OF NEW YORK CITY, INC., Respondent.

Submitted November 3, 2003; decided November 20, 2003

Reported below, 301 AD2d 366.

Motion by New York Trial Lawyers Association for leave to

file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

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In the Matter of K.L., Appellant. GLENN MARTIN, Respondent;  
ATTORNEY GENERAL OF STATE OF NEW YORK, Intervenor-  
Respondent.

Submitted September 22, 2003; decided November 20, 2003

Reported below, 302 AD2d 388.

Motion by New York Lawyers for the Public Interest, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted. Three copies of a brief may be served and 20 copies filed within 30 days.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MI-  
CHAEL CALABRIA, Appellant.

Submitted November 17, 2003; decided November 20, 2003

Reported below, 307 AD2d 933.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PATRI-  
CIO LINARES, Appellant.

Submitted November 10, 2003; decided November 20, 2003

Reported below, 302 AD2d 256.

Motion for assignment of counsel granted and Laura Johnson, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC  
PROVIDENCE, Appellant.

Submitted November 3, 2003; decided November 20, 2003

Reported below, 308 AD2d 200.



Motion for assignment of counsel granted and Laura Johnson, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

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In the Matter of JOHN L. REYNOLDS, Appellant, v ERNEST J. DUSTMAN et al., Respondents.

Submitted November 17, 2003; decided November 20, 2003

Motion by John L. Reynolds for assignment of counsel etc. denied.

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In the Matter of LEONZA WATKINS, Appellant, v GLENN S. GOORD, as Commissioner of Correctional Services, et al., Respondents.

Submitted August 25, 2003; decided November 20, 2003

Reported below, 307 AD2d 503.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

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In the Matter of FREEMAN WEBB, Appellant, v GLENN S. GOORD, as Commissioner of the New York State Department of Correctional Services, et al., Respondents.

Submitted September 8, 2003; decided November 20, 2003

Reported below, 307 AD2d 782.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

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[802 NE2d 1083, 770 NYS2d 685]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JIAN JING HUANG, Appellant.

Argued October 15, 2003; decided November 24, 2003

#### SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an



order of that Court, entered December 24, 2002. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (James A. Yates, J.), which had granted defendant's motion to withdraw his guilty plea to kidnapping in the second degree or, in the alternative to vacate a judgment rendered upon that plea, and (2) denied the motion.

*People v Jian Jing Huang*, 302 AD2d 90, reversed.

#### HEADNOTE

##### Crimes — Appeal

The Appellate Division had no jurisdiction to entertain the People's appeal (CPL 450.20) of a trial court determination which had granted defendant's motion to withdraw his plea of guilty, after sentence had been pronounced in open court but prior to entry of judgment, or in the alternative, to vacate his plea (CPL 440.10 [1]). The trial court treated the plea motion as a CPL 220.60 (3) application and granted it and also granted the CPL 440.10 motion. In appealing the trial court's determination—whether properly made under CPL 220.60 (3), or, alternatively, not expressly authorized by the CPL—the People sought review of a nonappealable order. Moreover, judgment had not been entered, and thus no appeal could lie from the “alternative” CPL 440.10 ruling.

#### APPEARANCES OF COUNSEL

*Office of the Appellate Defender*, New York City (*Daniel A. Warshawsky* and *Richard M. Greenberg* of counsel), for appellant.

*Robert M. Morgenthau*, *District Attorney*, New York City (*Morie I. Kleinbart* and *Mary C. Farrington* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court, with directions to dismiss the appeal taken to that Court.

Arguing a misapprehension of his immigration status based on information provided by his attorney, defendant moved to withdraw his plea of guilty, after sentence had been pronounced in open court. In the alternative, he moved to vacate his plea under CPL 440.10 (1). Without describing the steps that are involved or what constitutes the entry of judgment, both parties concede that judgment had not been entered. Trial court treated the motion as a CPL 220.60 (3) application and granted it, giving defendant back his plea. “In the alternative,” the court also granted the CPL 440.10 motion.

The People appealed, contending that because sentence had been imposed, Supreme Court lacked the authority to treat defendant's motion to withdraw his plea as a CPL 220.60 application, and, further, that relief pursuant to CPL 440.10 was unavailable because judgment had not been entered. Without deciding the specific procedural posture of the case, the Appellate Division rejected defendant's ineffective assistance claim on the merits.

In appealing trial court's determination—whether properly made under CPL 220.60 (3), or, alternatively, not expressly authorized by the CPL—the People sought review of a nonappealable order. As the parties agree, moreover, judgment had not been entered, and thus no appeal could lie from the “alternative” CPL 440.10 ruling. Accordingly, the Appellate Division had no jurisdiction to entertain the People's appeal (*see* CPL 450.20).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur in memorandum.

Order reversed, etc.

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In the Matter of DONALD M. BENNETT, Appellant, v NEW ROCHELLE POLICE DEPARTMENT, Respondent.

Submitted October 6, 2003; decided November 24, 2003

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge READ taking no part.

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In the Matter of JAMES EDWARDS, Appellant, v JAMES E. PELZER, Respondent.

Submitted September 29, 2003; decided November 24, 2003

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

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In the Matter of SINCLAIR HABERMAN, Appellant, v CITY OF LONG BEACH et al., Respondents.

Submitted October 6, 2003; decided November 24, 2003

Reported below, 307 AD2d 313.

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that no substantial constitutional question is directly involved.

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[802 NE2d 1089, 770 NYS2d 691]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PAUL M. BERRUS, Respondent.

Argued October 23, 2003; decided November 25, 2003

#### SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of Lewis County Court (Scott R. Nortz, J.), entered December 23, 2002. The County Court affirmed a judgment of the Justice Court of the Town of Denmark (Raymond Taylor, J.), which had dismissed a simplified traffic information charging defendant with a violation of Vehicle and Traffic Law § 376.

#### HEADNOTES

**Motor Vehicles — Traffic Infractions — Lights on Farm Tractor**

1. Vehicle and Traffic Law § 376 (1) (a), which requires lights on vehicles, applies to farm tractors. Accordingly, in defendant's prosecution for failure to have lights on the back of a tractor, the Town Justice concluded, erroneously, that the lights were not required because a farm tractor is not a motor vehicle.

**Motor Vehicles — Traffic Infractions — Interest of Justice Dismissal**

2. When an action is dismissed in the interest of justice pursuant to CPL 170.40, a judge must consider, individually and collectively, the specific factors listed and must state reasons on the record. Here, the record does not indicate that the Town Justice took into consideration the factors enumerated when dismissing the action. Thus, the simplified traffic information is reinstated.

#### APPEARANCES OF COUNSEL

*Michael F. Young, District Attorney, Syracuse and D.J. & J.A. Cirando (John A. Cirando, Lisa M. Cirando, Susan R. Rider and Mickelle A. Olawoye of counsel), for appellant.*

*Costello, Cooney & Fearson, LLP, Syracuse (Samuel C. Young of counsel), for respondent.*

## OPINION OF THE COURT

## MEMORANDUM.

The order of County Court should be reversed and the simplified traffic information reinstated.

Defendant received a simplified traffic information for failing to have lights on the back of a tractor that was pulling a manure spreader, around 5:00 P.M. in the Town of Denmark, County of Lewis, on December 5, 2001. Relying upon advice from the Court Administration Resource Center, the Town Justice concluded, erroneously, that lights were not required because a tractor is not a motor vehicle within the meaning of Vehicle and Traffic Law §§ 375 and 376. The Town Justice dismissed the action in the interest of justice, and County Court affirmed.

[1] In dismissing the case, the Town Justice referred to a provision of Vehicle and Traffic Law § 376 that was repealed by Laws of 1994, chapter 654, § 5, effective January 29, 1995, a provision referring to registered farm vehicles and requiring them to be equipped in accordance with regulations issued by the Commissioner of Motor Vehicles. By contrast, section 376 (1) (a) of the Vehicle and Traffic Law, which was in effect on the date the ticket was issued, requires lights on vehicles and thus includes tractors.

[2] Moreover, when an action is dismissed in the interest of justice pursuant to CPL 170.40, the judge must consider, “individually and collectively,” the specific factors listed and must state reasons on the record (*see also* CPL 210.40). While dismissal may have been warranted, the record does not indicate that the Town Justice took into consideration the factors enumerated in CPL 170.40. We, therefore, reverse the order of County Court and reinstate the simplified traffic information.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur in memorandum.

Order reversed, etc.

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[807 NE2d 282, 775 NYS2d 232]

ROSEANNE FRANCHINI et al., Appellants, v SUZANNE PALMIERI,  
Respondent.

Decided November 25, 2003

## SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered

August 7, 2003. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Schenectady County (Vincent J. Reilly, Jr., J.), which had granted defendant's motion for summary judgment dismissing the complaint.

*Franchini v Palmieri*, 307 AD2d 1056, affirmed.

#### HEADNOTE

##### **Insurance — No-Fault Automobile Insurance — Serious Injury**

In a negligence action to recover for injuries allegedly sustained in a motor vehicle accident, summary judgment was properly granted to defendant. Defendant properly relied on medical records and reports prepared by plaintiff's treating physicians to establish that plaintiff did not suffer a serious injury causally related to the accident. Plaintiff's submissions were insufficient to defeat summary judgment. Her experts failed to adequately address plaintiff's preexisting back condition and other medical problems, and did not provide any foundation or objective medical basis supporting the conclusions they reached.

#### APPEARANCES OF COUNSEL

*DeLorenzo Law Firm, LLP*, Schenectady (*Thomas E. DeLorenzo* of counsel), for appellants.

*Thuillez, Ford, Gold, Johnson & Butler, LLP*, Albany (*Debra J. Young* of counsel), for respondent.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

In this negligence action to recover for injuries allegedly sustained in a motor vehicle accident, defendant properly relied on medical records and reports prepared by plaintiff's treating physicians to establish that plaintiff did not suffer a serious injury causally related to the accident. Defendant having established prima facie entitlement to summary judgment, the burden shifted to plaintiff to offer proof in admissible form sufficient to create a material issue of fact necessitating a trial (*see Giuffrida v Citibank Corp.*, 100 NY2d 72, 81 [2003]). Plaintiff's submissions were insufficient to defeat summary judgment because her experts failed to adequately address plaintiff's preexisting back condition and other medical problems, and did not provide any foundation or objective medical basis supporting the conclusions they reached (*see Romano v Stanley*, 90 NY2d 444, 451-452 [1997]; *see also Toure v Avis Rent A Car Sys.*, 98 NY2d 345, 357-358 [2002]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

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In the Matter of GABRIELLE HH., a Child Alleged to be Abandoned. COLUMBIA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; ADAM HH., Appellant.

Submitted November 3, 2003; decided November 25, 2003

Reported below, 306 AD2d 571.

Motion for leave to intervene granted to the extent of accepting as filed movant's motion for dismissal of the appeal herein or, in the alternative, for reconsideration of this Court's September 18, 2003 order granting leave to appeal. Motion to dismiss appeal or for reconsideration of motion for leave to appeal denied. Motion for leave to intervene otherwise denied.

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HAWKEYE FUNDING, LIMITED PARTNERSHIP, et al., Appellants, v DUKE/FLUOR DANIEL et al., Respondents.

Submitted November 10, 2003; decided November 25, 2003

Reported below, 307 AD2d 828.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

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SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOPETTA et al., Appellants.

Decided November 25, 2003

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.17 of the Rules of the Court of Appeals (22 NYCRR 500.17), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO and READ.

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